

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

MARC M. MOSZKOWSKI,

Plaintiff,

vs.

Case No.:

RUSTIN R. HOWARD

Division:

Defendant

and

THOMAS J. JOHNSON,

Defendant

COMPLAINT

Plaintiff MARC M. MOSZKOWSKI (hereinafter referred to as "MOSZKOWSKI"), Pro Se, sues Defendants RUSTIN R. HOWARD (hereinafter referred to as "HOWARD"), and THOMAS J. JOHNSON (hereinafter referred to as "JOHNSON").

Plaintiff alleges as follows:

JURISDICTION AND THE PARTIES

1. Plaintiff MOSZKOWSKI is a Founder of Florida Corporation DeepGulf, Inc. (hereinafter referred to as "DEEPGULF"), which has its

registered address in Escambia County, Florida, and of which he is the largest shareholder, with close to 50% ownership¹;

2. Plaintiff MOSZKOWSKI is also the President and a Director of DEEPGULF;
3. Plaintiff MOSZKOWSKI is a French citizen and a resident of France;
4. Defendant HOWARD is a Director, Founder, and Chairman of the Board of DEEPGULF;
5. Defendant JOHNSON is a Director of DEEPGULF;
6. Both Defendants are U.S. citizens and reside in Escambia County, Florida;
7. The damages claimed in this lawsuit exceed the First Judicial Circuit Court Jurisdictional threshold of \$30,000, in effect since January 1, 2020;
8. On April 3, 2018, Defendants HOWARD and JOHNSON caused DEEPGULF, together with extinct, and therefore legally non existing foreign corporation Toke Oil and Gas S.A., to file a frivolous and

¹ The exact figure cannot be assessed with certainty because of discrepancies in corporate documents prepared by Defendant HOWARD.

unmeritorious lawsuit against MOSZKOWSKI in the Circuit Court in and for Escambia County, Florida (Case No. 2018 CA 000543, Division: K);

9. On June 25, 2018, MOSZKOWSKI removed the lawsuit to the United States District Court for the Northern District of Florida, Pensacola Division (Case No. 3:18-CV-1466-TKW-MJF);

10. On July 2, 2020, Final Judgement was rendered. Of the 9 Counts of DEEPGULF's complaint against MOSZKOWSKI, 8 were denied or dismissed, the only Count that was not denied or dismissed being for a point that MOSZKOWSKI understands had been in effect all but moot ever since the lawsuit was filed;

11. Plaintiff MOSZKOWSKI is now suing both Defendants HOWARD and JOHNSON personally as co-conspirators;

12. A severe conflict of interest would bar MOSZKOWSKI from suing the corporations, since he is the largest shareholder of the first, with close to 50% of the stock, and is a Director and President, and would therefore be both Plaintiff and Defendant concurrently². As for the

² HOWARD and JOHNSON attempted in July 2020 to discharge MOSZKOWSKI of his corporate positions, a few days only after U.S. District Court had denied DEEPGULF's

other co-Plaintiff, foreign corporation Toke Oil and Gas S.A., it has no legal existence anymore, and while it had legal existence MOSZKOWSKI was one of its two Directors.

COUNT I – MALICIOUS PROSECUTION

13. HOWARD and JOHNSON conspired to knowingly and frivolously cause a malicious lawsuit to be filed jointly by DEEPGULF and extinct foreign corporation Toke Oil and Gas S.A. against MOSZKOWSKI, long after the Statute of Limitations had expired, while never producing a single piece of authentic evidence;

14. MOSZKOWSKI believes that the lawsuit was meant as a preemptive and distractive strike in an attempt to conceal HOWARD's own mismanagement of corporate funds and records;

15. HOWARD and JOHNSON based the lawsuit on a highly fictional narrative of their own writing, which wrongly and absurdly reported events that occurred starting in 2007 in the distant country of East Timor, in which they were not personally involved. More than ten years after the fact, they arranged the false narrative to artificially

accusations against MOSZKOWSKI of theft, conversion, breach of agreement, fraudulent misrepresentation. However, the discharge procedure was irregular and possibly fraudulent, and could thus not be acknowledged by MOSZKOWSKI.

support their wrongful accusations, but never produced a semblance of authentic evidence. The narrative bears very little resemblance to actual facts, and was written despite their ignorance of the country of East Timor at the time MOSZKOWSKI established a business relationship in that distant nation, which was then in violent civil and military turmoil, sourced and organized all international and local contractors, hired hundreds of workers, and negotiated and signed multi-million dollar contracts between foreign corporation Toke Oil and Gas S.A.³ on one hand, and the East Timorese Government on the other, as well as with a Consortium of large South Korean corporations⁴, without any help whatsoever from either of the Defendants or from DEEPGULF;

16. Before the lawsuit, and later in his pleadings, MOSZKOWSKI wrote hundreds of thoroughly documented pages that exposed the falsity of the narrative and of the accusations;

³ DEEPGULF was one of several subcontractors hired by East Timorese corporation Toke Oil and Gas S.A., of which 66.67% was owned by local nationals and 33.33% was in the name of MOSZKOWSKI for reasons of practicability and security, MOSZKOWSKI having been appointed Toke Oil and Gas S.A.'s President Director General.

⁴ The Korean Consortium consisted of 9 large Korean corporations, among which were Samsung, STX, KOGAS, LG International, and GS CALTEX.

17. HOWARD and JOHNSON progressively watered down a number of their unsupported and absurd statements in DEEPGULF's pleadings, when faced with the abundant contradicting evidence provided by MOSZKOWSKI;

18. In their pleadings, as the Court and MOSZKOWSKI understood it, HOWARD and JOHNSON finally claimed that DEEPGULF was entitled to the shareholder distributions derived from the 33.33% share of foreign corporation Toke Oil and Gas S.A.'s that MOSZKOWSKI was holding in his name⁵, and they caused DEEPGULF to claim that amount from MOSZKOWSKI;

19. However, an analysis of financial records, including DEEPGULF's own financial records, which were subpoenaed from HOWARD and JOHNSON by MOSZKOWSKI, shows unequivocally that foreign corporation Toke Oil and Gas S.A. paid DEEPGULF substantially

⁵ MOSZKOWSKI was holding the 33.33% share in his name for various technical and legal reasons, but primarily to protect DEEPGULF from direct exposure in the exceedingly hazardous environment of East Timor in 2008, an environment he has described in great detail in his letters to the shareholders and in his pleadings. MOSZKOWSKI later agreed to sell his 33.33% holding to DEEPGULF for \$100, which would have been the only benefit he ever derived from holding that share in his name (had the \$100 amount been actually paid), while he had volunteered for several years to assume all risks in a personal capacity, in order to protect young DEEPGULF, should anything have gone wrong with the difficult and exotic contracts.

more than 33.33% of Toke Oil and Gas S.A.'s shareholder distributions, since in fact it paid DEEPGULF 50.3% thereof;

20. In effect, DEEPGULF was paid by Toke Oil and Gas S.A. 150.9% of the shareholder distributions to which DEEPGULF claimed it was entitled;

21. Furthermore, the shareholder distributions claimed from MOSZKOWSKI by HOWARD and JOHNSON in the lawsuit they instigated are much lower in value than the amounts unequivocally owed by DEEPGULF to MOSZKOWSKI for past promised, but still unpaid, salaries and expenses, including legal, and represent about 30% of the amounts DEEPGULF owes MOSZKOWSKI;

22. To summarize, as instigators of the lawsuit, HOWARD and JOHNSON absurdly claimed from MOSZKOWSKI shareholder distributions which were:

- a) significantly lower in value than the amounts MOSZKOWSKI had caused Toke Oil and Gas S.A. to pay DEEPGULF in reality;
- b) considerably lower in value than the amounts DEEPGULF owes MOSZKOWSKI;

c) notwithstanding that HOWARD and JOHNSON caused the lawsuit to be filed long after the expiration of the Statute of Limitations.

23. As a consequence of the irrational and untimely lawsuit, MOSZKOWSKI dedicated a period exceeding two years to defending himself and counter-fighting HOWARD and JOHNSON through DEEPGULF, acting without the support of an attorney for almost a year, enduring considerable hardship and damages in the process, and finally spending on his defense, when he finally obtained counsel, an amount of money that is to him considerable but is however unequivocally due to him by DEEPGULF as per company's bylaws;

24. As a consequence of the irrational and untimely lawsuit, the goodwill of DEEPGULF has been all but destroyed;

25. HOWARD and JOHNSON commenced the original civil judicial proceeding;

26. HOWARD and JOHNSON were the legal cause of the proceeding against MOSZKOWSKI;

27. The *bona fide* termination of the original proceeding is in favor of MOSZKOWSKI;

28. There was absence of probable cause in the original proceeding;

29. HOWARD and JOHNSON acted with malice.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT II – ABUSE OF PROCESS:

CONFLICT OF INTEREST

30. HOWARD and JOHNSON caused the lawsuit they instigated to be filed on behalf of DEEPGULF, of which MOSZKOWSKI is the largest shareholder, with nearly 50% of the stock, a Director, and the President, instead of in a derivative action on behalf of other shareholders, which created a severe conflict of interest, to the extent that MOSZKOWSKI was in effect suing himself, being at the same time both Plaintiff and Defendant, while DEEPGULF owes him the reimbursement of the legal costs he incurred for his defense;

31. HOWARD's and JOHNSON's action thus caused injury to MOSZKOWSKI without HOWARD and JOHNSON incurring any foreseen personal risk to themselves, in a process in which most of DEEPGULF's resources, of which MOSZKOWSKI owns nearly half, were wasted, instead of being spent for the development of DEEPGULF;

32. HOWARD and JOHNSON had ulterior motive or purpose in exercising the process;

33. HOWARD and JOHNSON willfully and intentionally made illegal, improper, and perverted use of process.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT III – BREACH OF CONTRACT:

VIOLATION OF CORPORATE BYLAWS

34. HOWARD and JOHNSON have ignored consistently MOSZKOWSKI's just requests for the payment by DEEPGULF of MOSZKOWSKI's legal costs, which are due by DEEPGULF

according to DEEPGULF's own bylaws, said bylaws mandating in Article XI that DEEPGULF must unequivocally pay for MOSZKOWSKI's legal costs;

35. HOWARD and JOHNSON, who represent two thirds of DEEPGULF's Board of Directors, and thus still control it, must unequivocally ensure that MOSZKOWSKI is reimbursed of all his legal costs, which were incurred as a consequence of the unmeritorious and absurd lawsuit they instigated against MOSZKOWSKI.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT IV – FRAUD:

FALSIFICATION OF CORPORATE RECORDS

36. HOWARD falsified and fabricated after the fact several essential corporate documents, which he used to support DEEPGULF's lawsuit, in particular minutes of several Board of Directors meetings that never took place, and a number of alleged agreements;

37. HOWARD and JOHNSON accused MOSZKOWSKI of not having asked DEEPGULF's Board of Directors to authorize the foreign salary⁶ he had received from DEEPGULF's third party client overseas, Toke Oil and Gas S.A., of which he was the President Director General⁷;

38. Meanwhile, HOWARD never requested Board authorization for his own domestic salaries, but fabricated such authorization and the minutes of the corresponding alleged Board of Directors meeting after the fact⁸;

39. HOWARD produced during trial on June 17, 2020, two alleged agreements between HOWARD and MOSZKOWSKI, to the effect

⁶ MOSZKOWSKI received a salary from foreign corporation Toke Oil and Gas S.A. for the demanding duties he discharged as President Director General for the foreign corporation in the extremely unsanitary and dangerous East Timorese environment, both onshore and offshore. Said salary was paid out of the distributions due to the 66.67% share of the foreign corporation that was by then held by one of the foreign founders, not out of the distributions to the 33.33% share held by MOSZKOWSKI, which 33.33% share returned to DeepGulf, Inc. 50.3% of all distributions. The foreign shareholder would have naturally kept the corresponding amounts in his own account, should he not have determined to pay that salary out of his own distributions.

⁷ Furthermore, from his conferring with the Directors present on DEEPGULF's Board at the time, MOSZKOWSKI trusts that said authorization for such a legitimate salary could not, and would not, have been denied.

⁸ On a per hour basis, the salary HOWARD caused DEEPGULF to pay himself without ever requesting MOSZKOWSKI's authorization was between 10 and 20 times as much as the domestic salary DEEPGULF paid MOSZKOWSKI, who would not have agreed to such an undeserved and illegitimate salary, a fact that HOWARD could not have ignored. HOWARD was never involved personally in any of the East Timorese projects.

that MOSZKOWSKI had, according to HOWARD, allegedly accepted to waive his past due salaries, although oddly without any consideration:

(a) an alleged agreement that HOWARD wrote himself, failed to authenticate, bore only his signature, and was never communicated to MOSZKOWSKI until discovery 7 years later, and

(b) an alleged agreement that HOWARD wrote himself, failed to authenticate, and bore only his signature, the critical content of which was missing in the copy he had submitted to MOSZKOWSKI before discovery;

(c) HOWARD and JOHNSON did not provide an explanation as to what undisclosed reason would have caused MOSZKOWSKI to agree to such an onerous sacrifice without any consideration whatsoever;

40. HOWARD and JOHNSON based a number of their other accusations against MOSZKOWSKI on several other falsified corporate documents.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT V – FRAUD:

FRAUDULENT MISREPRESENTATION OF FINANCIAL RECORDS

41. After MOSZKOWSKI subpoenaed from HOWARD DEEPGULF's financial records, which proved to be not only incomplete but also chaotic and unprofessionally kept, MOSZKOWSKI discovered that HOWARD, who had put himself in charge of DEEPGULF's finances and administration since the founding of DEEPGULF in 2005, unarguably provided false information under oath regarding company cash receipts, and in particular the substantial revenue that had been secured by MOSZKOWSKI for DEEPGULF after 2012, in order to justify the claim that no back salary should be paid to MOSZKOWSKI, because of a purported lack of funds;

42. MOSZKOWSKI suffered considerable damage, moral, physical, and financial, as a consequence of the false evidence provided by HOWARD and JOHNSON.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT VI – FRAUD:

FRAUDULENT COLLECTION OF CORPORATE PROXIES

43. HOWARD and JOHNSON wrongly reported DEEPGULF's shareholding and capital structures when they sought and then reportedly obtained the proxies that allowed them to:

a. reorganize DEEPGULF's Board of Directors to their convenience in 2017 by having JOHNSON elected as Director, and then

b. frivolously sue MOSZKOWSKI;

44. The wrongly reported shareholding structure must invalidate said proxies, which resulted in a lawsuit being wrongly filed against MOSZKOWSKI;

45. In June 2020, HOWARD and JOHNSON reiterated the fraudulent collection of proxies to reorganize the composition of the Board of Directors, and obtained proxies from shareholders whom they barred

MOSZKOWSKI from contacting, by withholding the list of shareholders and their addresses.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT VII – FRAUD:

FRAUDULENT CONCEALMENT OF CORPORATE RECORDS

46. HOWARD consistently refused to provide to MOSZKOWSKI close to half the Corporation's Shareholders' addresses , which he kept, and still keeps, secret when he sought and obtained proxies unilaterally in order to change the composition of DEEPGULF's Board of Directors to his advantage and then frivolously sue MOSZKOWSKI;

47. HOWARD and JOHNSON obtained proxies from Shareholders who were barred by HOWARD and JOHNSON from hearing MOSZKOWSKI, thus creating utterly biased shareholder support for HOWARD and JOHNSON.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT VIII – FRAUD:

FRAUDULENT MISREPRESENTATION OF CORPORATE FACTS

48. HOWARD and JOHNSON made unproven, inflated, and clearly implausible statements and promises about current Corporation activities during a Board of Directors meeting held on 6 November 2019;

49. HOWARD and JOHNSON only produced the minutes of said Board of Directors meeting on July 21, 2020, after MOSZKOWSKI had repeatedly requested them since November 2019. The minutes were produced 8 ½ months after the meeting, nearly 6 months after the summary judgement was rendered, and more than a month after the June 17, 2020, trial, thus preventing MOSZKOWSKI from using the mendacious content of the minutes in his pleadings.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, fraudulent representation of corporate facts,

court costs, and such other and further relief as this Court deems proper and just.

COUNT IX – FRAUD:

FRAUDULENT INDUCEMENT OF WITNESS TO LIE UNDER OATH

50. HOWARD and JOHNSON and/or DEEPGULF's Attorney caused or encouraged foreign corporation Toke Oil and Gas S.A.'s original co-founder Gino Favaro⁹ to lie under oath in an affidavit they had clearly prepared themselves, regarding MOSZKOWSKI's alleged past activities in East Timor, and/or used in their pleadings an affidavit that was clearly not only mendacious, but also absurd.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

⁹ As early as 2008, Mr. Favaro had been dismissed by Toke Oil and Gas S.A.'s other two Directors, MOSZKOWSKI being one of the two Directors, for illicit financial behavior.

COUNT X – FRAUD:

**VIOLATION OF AN OBLIGATION TOWARDS THE DEPARTMENT OF
HOMELAND SECURITY**

51. HOWARD committed in writing to the U.S. Department of Homeland Security to provide a personal security in the form of his personal assets, to guarantee that MOSZKOWSKI's salaries due by DEEPGULF would continuously be paid;
52. MOSZKOWSKI is an alien citizen to whom the Department of Homeland Security provided several consecutive visas between 2005 and 2017, which enabled him to be employed by DEEPGULF, at the express condition that during the validity of his visas MOSZKOWSKI would consistently and continuously receive his visa mandated salaries from DEEPGULF, represented by visa petitioner, HOWARD;
53. HOWARD never implemented the personal guarantee he had committed to the Department of Homeland Security and he kept MOSZKOWSKI without the salary DEEPGULF still owes him, including at times when MOSZKOWSKI secured substantial revenue for DEEPGULF;

54. HOWARD kept the commitment to the Department of Homeland Security secret from MOSZKOWSKI until late in the discovery process;

55. An amount of close to one million dollars (\$1,000,000) is due by DEEPGULF to MOSZKOWSKI for past due salaries, which salaries HOWARD has personally guaranteed and therefore must pay MOSZKOWSKI personally;

56. By violating his financial commitment to a Federal Agency, HOWARD also violated repeatedly Federal Rules regarding the granting of visas for an alien citizen to be legally employed by a U.S. corporation.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT XI – CIVIL CONSPIRACY:

**CONSPIRACY TO FRAUDULENTLY SUBSTITUTE A THIRD PARTY
LOAN FOR A SALARY**

57. Despite the guarantee and obligations described above, and substantial subsequent cash receipts returned to DEEPGULF by MOSZKOWSKI's activities, HOWARD attempted in June 2013 to cause a Shareholder and associate of his, David Rumsey, to substitute a personal high interest loan in lieu of the salary duly owed by DEEPGULF to MOSZKOWSKI;

58. Subsequently, the Shareholder unmeritoriously sued MOSZKOWSKI overseas in France in 2018 for the repayment of a loan that he had never paid MOSZKOWSKI in the first place, and lost the case in a Summary Judgement within a month of filing;

59. However, the Shareholder sued again in a different French Court of Law and this time won by default *in absentia*, since French Courts do not allow Pro Se representation, and, considering that MOSZKOWSKI could not afford an attorney at the time, MOSZKOWSKI was not even apprised of the Court date;

60. Nevertheless, because the judgement was by default and *in absentia*, MOSZKOWSKI was allowed to appeal after he had secured representation, and the appeal is currently being processed;

61. As a consequence of the conspiracy, a lien was put on MOSZKOWSKI's property by the Shareholder and MOSZKOWSKI suffered, and still suffers, considerable moral and financial damage.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT XII – FRAUD:

FRAUDULENT FALSIFICATION OF CORPORATE STOCK STRUCTURE

62. Financial documents subpoenaed by MOSZKOWSKI from HOWARD indicate that the capital paid up by the Shareholder described in Count XI above decreased after the conspiracy by an amount equal to the amount of the alleged loan;

63. The decrease of paid up capital shows in effect an attempt by both HOWARD and the Shareholder to fraudulently and artificially cause MOSZKOWSKI to personally pay for the Shareholder's shares at face

value, without MOSZKOWSKI's number of shares increasing in the books, nor the Shareholder's number of shares decreasing;

64. HOWARD reported the capital wrongly, either in DEEPGULF's books or in the information he provided to MOSZKOWSKI, or in both, and artificially inflated it by as much as \$99,000, while reporting one large Shareholder, other than the one already mentioned, who proved not to exist;

65. As a consequence of the falsification of corporate stock, MOSZKOWSKI's relative shareholding has been artificially depreciated by HOWARD;

66. As a consequence of the falsification of corporate stock, the proxies obtained by HOWARD and JOHNSON, in order to reorganize the Board of Directors to their advantage and then frivolously sue MOSZKOWSKI, were fraudulently obtained and therefore must be invalidated.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT XIII – FRAUD:

FRAUD ON THE MINORITY

67. As a consequence of Counts VI (fraudulent collection of corporate proxies), VII (fraudulent concealment of corporate records), and XII (fraudulent falsification of corporate stock structure), HOWARD and JOHNSON manipulated the composition of the Board of Directors to their own advantage, in order to gain a majority which they did not command until then;

68. After a previous Director had left the Board in 2017 when being personally threatened by HOWARD because of his strong disagreement with HOWARD's policy of harassing MOSZKOWSKI without cause or evidence and his demonstrated lack of interest for and commitment to DEEPGULF, HOWARD apparently falsified both stock and shareholder structures in order to have a close associate of his, Defendant JOHNSON, take the Board seat then vacated, and reverse the majority in their favor;

69. The previous Director had attempted for several months to mediate the dispute that had existed since 2014 between MOSZKOWSKI and HOWARD regarding mostly the latter's lack of commitment for

DEEPGULF, and his subsequent false accusations of wrongdoing and theft against MOSZKOWSKI, which HOWARD was making without a semblance of evidence;

70. As a consequence of the manipulation and falsifications that led to the act of fraud on the minority, the Board of Directors, which was by now controlled fraudulently by HOWARD and JOHNSON, caused MOSZKOWSKI to be frivolously and maliciously sued by DEEPGULF;

71. In June and July 2020, HOWARD and JOHNSON repeated a similar procedure, in an attempt to evict MOSZKOWSKI from his corporate positions. In addition, they conspired, without apparent legitimacy, to reduce the number of Directors from 3 to 2 immediately before the Shareholders' Meeting in which HOWARD and JOHNSON were reelected as Directors, so that MOSZKOWSKI could not be re-elected, despite his having gathered 2,050,000 votes, since HOWARD and JOHNSON had just connived to eliminate the third Director position.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD and JOHNSON for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT XIV – PERJURY:

DEFENDANT LIED UNDER OATH

72. Defendant HOWARD stated on July 19, 2019, in a deposition under oath, a number of litigations in which he had been involved¹⁰;

73. HOWARD, when asked under oath whether he had been involved in any litigation other than those he had stated, replied that he had not, and thus failed to report a lawsuit he filed himself in 2011 against a former business partner, which lawsuit he brought in the very same United States District Court for the Northern District of Florida, Pensacola Division, in which DEEPGULF's case had been brought, and before the very same Judge, Judge M. Casey Rodgers¹¹;

74. MOSZKOWSKI trusts that the failure by HOWARD to report a relatively recent lawsuit which he had filed himself in the exact same venue where DEEPGULF was suing MOSZKOWSKI, and before the very same Judge, could hardly be attributed to a lapse of memory, in which case HOWARD lied under oath.

¹⁰ These were found to be a series of litigations against former business partners of HOWARD's, one of them being a close relative.

¹¹ The case (No. 3:11cv366/MCR/CJK) was dismissed, and a motion for relief from judgment was denied on August 25, 2012.

WHEREFORE, MOSZKOWSKI demands judgement against HOWARD for damages, court costs, and such other and further relief as this Court deems proper and just.

Signed, this 10th day of August, 2020

Marc Moszkowski, Pro Se
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Le Verdos
83300 Châteaudouble, France

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is fluid and cursive, with the first letter "M" being particularly large and stylized.

CERTIFICATE OF SERVICE

I hereby certify that, on this 10th day of August, 2020, I have requested that service of process be made to HOWARD and JOHNSON by an officer authorized by law to serve process.